

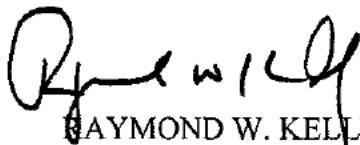


POLICE DEPARTMENT

-----X  
In the Matter of the Disciplinary Proceedings :  
  
- against - : FINAL  
  
Detective Thomas Clarke : ORDER  
  
Tax Registry No. 896289 : OF  
  
Military & Extended Leave Desk : DISMISSAL  
-----X

Detective Thomas Clarke, Tax Registry No. 896289, Shield No. 2208, Social Security No. ending in [REDACTED] having been served with written notice, has been tried on written Charges and Specifications numbered 83711/08 as set forth on form P.D. 468-121, dated March 14, 2008, and after a review of the entire record, has been found Guilty as Charged.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Detective Thomas Clarke from the Police Service of the City of New York.

  
RAYMOND W. KELLY  
POLICE COMMISSIONER

EFFECTIVE: 0001 hours, July 22, 2009

COURTESY • PROFESSIONALISM • RESPECT



POLICE DEPARTMENT

-----X  
In the Matter of the Charges and Specifications : Case No. 83711/08  
  
- against - :  
  
Detective Thomas Clarke :  
  
Tax Registry No. 896289 :  
  
Military & Extended Leave Desk :  
-----X

At: Police Headquarters  
One Police Plaza  
New York, New York 10038

Before: Honorable Robert W. Vinal  
Assistant Deputy Commissioner - Trials

A P P E A R A N C E:

For the Department: Lisa M. McFadden, Esq.  
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One Police Plaza  
New York, New York 10038

For the Respondent: Peter Brill, Esq.  
Karasyk & Moschella, LLP  
225 Broadway, 32<sup>nd</sup> Floor  
New York, NY 10007

To:

HONORABLE RAYMOND W. KELLY  
POLICE COMMISSIONER  
ONE POLICE PLAZA  
NEW YORK, NEW YORK 10038

COURTESY • PROFESSIONALISM • RESPECT

The above-named member of the Department appeared before me on March 3, 2009, charged with the following:

1. Said Detective Thomas Clarke, assigned to the Detective Borough Manhattan North Homicide Task Force, on or about and between October 7, 2007 through January 7, 2008, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Police Officer did wrongfully ingest cocaine without police necessity to do so.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

2. Said Detective Thomas Clarke, assigned to the Detective Borough Manhattan North Homicide Task Force, on or about and between October 7, 2007 through January 7, 2008, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Police Officer did wrongfully possess cocaine without police necessity to do so.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

3. Said Detective Thomas Clarke, assigned to the Detective Borough Manhattan North Homicide Task Force, on or about January 17, 2008, did wrongfully possess and/or display an unauthorized duplicate New York City Police Department shield, #2208, without permission or authority to do so.

P.G. 203-10, Page 2, Paragraph 18 – PROHIBITED CONDUCT

The Respondent, through his counsel, entered a plea of Guilty to one of the subject charges and a plea of Not Guilty to the remaining subject charges and a stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

### DECISION

The Respondent is found Guilty as charged of Specification Nos. 1 and 2.

The Respondent, having pleaded Guilty, is found Guilty of Specification No. 3.

SUMMARY OF EVIDENCE PRESENTEDThe Department's Case

The Department called Police Officer Sayedul Rahman and Dr. Thomas Cairns as witnesses.

Police Officer Sayedul Rahman

Police Officer Rahman testified that he is a 12-year member of the service, that possesses an A.A.S. degree in Nursing and that he is a licensed practical nurse. Until he was transferred five months ago, he was assigned to the Medical Division's Drug Screening Unit where his assignment was to collect hair samples from members who had been ordered to report to the Medical Division for random drug screening. He received training at the Medical Division on how to properly collect and seal hair samples for drug testing and when he completed this training he received a certificate of completion of training certifying that he had been trained to collect human hair samples. He estimated that while he was assigned to the Medical Division's Drug Screening Unit, he collected a total of between 3,000 and 4,000 hair and urine samples and that during a normal week he collected about 50 hair and urine samples from members of the service (MOS).

Officer Rahman testified that he collected hair samples from the Respondent on January 7, 2008 after the Respondent had reported to the Medical Division's Drug Screening Unit because his name had appeared on a notification list of MOS who had been randomly selected to be tested for drugs. After the Respondent signed in at the Drug Screening Unit, Rahman, following the mandated hair sample collection

documentation procedures, checked his Department ID and assigned the Respondent drug screening number 37-130-08-XH. The Respondent wrote his name, shield number, tax number and social security number on a "Drug Screening Questionnaire – Hair Testing" form [Department's Exhibit (DX) 1] (Item "1." on this form reads: "List any prescription medication taken during the past 3 months." The Respondent made no entry under Item 1). The Respondent signed and dated the form and Rahman signed it as the "collector." The Respondent's right index finger was inked and his fingerprint was entered on this form.

The Respondent's drug screening number was then entered on two "Specimen Drug Screening Custody and Control" forms (CCF). These identical forms contained pre-printed "Specimen ID" numbers. On one form the Specimen ID number was J520442 (DX 2A), and on the other form the Specimen ID number was J540722 (DX 2B). The Respondent signed and dated each of the forms under the "Donor Certification" statement and Rahman signed both forms as the "Collector."

Rahman then proceeded to follow the mandated hair sample collection procedures that he always follows, and that he was trained to follow by instructors from Psychemedics Corporation (Psychemedics), by first cleaning the sample collection table with alcohol to sterilize it and by putting "medical paper" on top of the table "to make sure there is no contamination." He then used sample collection packaging materials provided by Psychemedics. He set-up on the table wax paper and three strips of tin foil and three sample collection envelopes and three sample labels all of which he removed from a standard sealed kit provided by Psychemedics. Rahman put on sterile plastic gloves and removed a scissor, which is only used once, from a sealed package provided

by Psychemedics. Rahman testified that he then cut off three hair samples of about 60 strands from as close to the scalp as possible by lifting the Respondent's hair and cutting one inch off from three areas of the Respondent's head: the rear and both sides. He separated the hair into three piles. Each pile was placed into one of the three strips of tin foil and each strip of tin foil pile was folded in half and placed into one of the three sample collection envelopes which were each sealed with tape along with a Sample Acquisition Card (SAC) denoting the Specimen ID number. The Respondent initialed each of these SACs as "subject." Two of the SACs (DX 3 A & B) were placed into security envelopes which were sealed and then stapled together to be mailed to Psychemedics. The third sample was to be retained for the Respondent's use. Rahman then placed all three samples inside a locked safe through a slit on top of the safe. The safe has only one key which is retained by a sergeant assigned to the Medical Division. The safe is opened when a DHL pick up is scheduled at the Medical Division. The samples (other than the third sample) are placed into a DHL delivery box which is sealed and stored in a locked cabinet. A DHL courier picks up the samples and delivers them to Psychemedics. A log entry is made that the samples have been picked up by DHL and a letter of transmittal and a DHL tracking sheet accompany the DHL box.

On cross-examination, Rahman testified that the Medical Division training he received regarding hair sample collection procedures was provided by instructors from Psychemedics the drug testing laboratory the Department utilizes for hair sample testing which is located in Culver City, California. The certificate he received indicates that he completed a training course, it is not a New York State issued license certifying that he had been trained to collect human hair samples. He agreed that since he normally

collected ten hair samples per day and has collected a total of “a couple thousand” samples, he had no specific recollection of the Respondent and his testimony regarding how he collected the Respondent’s samples reflected the general hair sample collection procedures that he always followed. He did recall that he used the table on the left side of the cutting room, the table he usually used, to collect the Respondent’s samples but he could not recall whether anyone was using the table on the right side of the room. There is a curtain between the two tables which is always closed. Because there is no mirror in the room, MOS whose hair is being collected cannot see the back of their own heads. He had no problem lifting and cutting the Respondent’s hair.

On redirect examination, he testified that he never deviated from the hair sample collection procedures that he was instructed to follow. He testified that the Respondent wrote the wrong date on the “Drug Screening Questionnaire – Hair Testing” form (DX 1) and that the Respondent should have entered “1/7/08” not “1/7/07.”

Dr. Thomas Cairns

Dr. Cairns, the Senior Scientific Advisor, and former lab director, for Psychemedics Corporation (Psychemedics), testified that Psychemedics’ testing laboratory in Culver City, California is licensed as a testing facility by the New York State Department of Health to analyze hair for drug content. Cairns was stipulated to be an expert in the field of forensic toxicology and in the area of testing hair for the presence of drugs based on the qualifications cited in his curriculum vitae (DX 4).

Cairns explained that when cocaine is ingested, it enters the blood stream and as blood enters the base of the hair follicle it carries some of the ingested cocaine with it and

the cocaine is trapped there. Since hair grows at a predictable rate, one half inch per month, hair acts as a time recorder as to when the cocaine was ingested. Cairns further explained that when cocaine is ingested the bloodstream carries the cocaine to the liver which metabolizes the cocaine and produces benzoylecgonine (BE), the principal cocaine metabolite that is produced in the body when cocaine is ingested and metabolized.

Cairns interpreted the data contained in the laboratory data package produced by Psychemedics which details the analytical results of the testing of the Respondent's hair samples (DX 5). He personally certified this report. He explained that this laboratory data package "is in fact a total chain of custody" which establishes that the seals on the Respondent's hair samples were not broken or otherwise tampered with and which documented who touched the samples and what tests were performed on the samples. He testified that the analytical results show that only one of the Respondent's two samples was initially tested and it screened positive for cocaine when subjected to the radioimmunoassay (RIA) screening test. As a result, following lab protocol, both of the Respondent's hair samples were then separately tested via mass spectrometry (MS) instrumentation. The MS test results showed that both samples tested positive for cocaine at a concentration "fifty times" above the U.S. Food and Drug Administration (FDA)-established administrative reporting cut-off level of five nanograms of cocaine per ten milligrams of hair. Sample 1 tested positive at 270 nanograms of cocaine per ten milligrams of hair and Sample 2 tested positive at 234.8 nanograms of cocaine per ten milligrams of hair. Cairns opined that such high levels reflected "chronic" meaning "pretty regular use" of cocaine. Cairns further testified that the MS analytical results show that both of the Respondent's hair samples also tested positive for the presence of



BE. Sample 1 tested positive for BE at 25.9 nanograms of BE per ten milligrams of hair, and Sample 2 also tested positive for BE at 20.7 nanograms of BE per ten milligrams of hair. Cairns further testified that the MS analytical results show that both of the Respondent's hair samples reflected the presence of cocaethylene, the cocaine metabolite that is produced in the body when cocaine is ingested with alcohol, and the metabolite Norcocaine.

Cairns also testified that, based on head hair growth rates, the Respondent's hair samples reflected cocaine ingestion that occurred within 90 days of the date his hair samples were collected, other than within the five to seven day period immediately preceding the January 7, 2008, date of collection since it takes five to seven days for a hair follicle to produce a strand that can be clipped off at scalp level.

He reviewed medical records provided to him by the Assistant Department Advocate which document medical treatment the Respondent received at Middletown Medical Center on August 18, 2006 and December 3, 2007; at Crystal Run Health Care on December 14, 2007; and at Orange Regional Medical Center on November 23, 2007. Cairns testified that none of the medications that the Respondent was prescribed by physicians at these facilities could have caused the Respondent's hair samples to test positive for cocaine.

On cross-examination, Cairns testified that the FDA established an administrative reporting cut-off level of five nanograms of cocaine per ten milligrams of hair only after extensive research. He confirmed that even if a sample tested positive for cocaine at a level of 253 nanograms of cocaine per ten milligrams of hair, it would be considered "unsuitable" to report this result as a positive finding if the BE level, which

establishes that cocaine was ingested, for the sample was less than five percent of the cocaine level. When he was asked if the human body can produce BE from a substance other than cocaine, he answered, "No. It must come from cocaine."

He was questioned about the test results for certain samples (not one of the Respondent's two samples) cited in the data package (DX 5 p. 73). He was asked how a sample could have been reported as testing positive for cocaine at a level over 380 nanograms of cocaine per ten milligrams of hair since it had a BE level of only .8 percent. He testified that some individuals are "low BE producers," although very few produce less than five percent, which explained the low BE reading. The sample was reported as testing positive for cocaine because the MS test detected CE at a 4.2 percent level which, under federal regulations, "overrules the lack of BE."

He testified that the laboratory data package's chain of custody documentation indicates that about 20 different trained Psychomedics employees dealt with the Respondent's hair samples during the process of performing tests on the samples. He reaffirmed that cocaethylene is the cocaine metabolite that is produced by the body when cocaine is co-ingested along with alcohol. He did not personally train Rahman and he does not know who the Psychomedics' employee was who conducted his training.

#### The Respondent's Case

The Respondent testified in his own behalf.

The Respondent recalled that on the day after Thanksgiving, 2007, he suffered a knee injury and was placed on sick report. On January 6, 2008, he returned to duty and

the next day, January 7, 2008, he was ordered to report to the Medical Division's Drug Screening Unit because his name was on a list of MOS who had been randomly selected for DOLE-testing for drugs. When the Respondent was suspended on January 16, 2008, because he had tested positive for cocaine, he was surprised "because I never did any cocaine, never smoked any marijuana, just I drink on occasion like anybody else does casually, never did drugs in my life." The Respondent testified that, "I was taking a substance called Creatine. The person I got it from was a woman in Washington Heights who I knew pretty well at the time. Her husband was locked up for five kilos of cocaine at Newark airport. She works as a weightlifter or a weight trainer. She gave me supplements. Creatine is a white rock crystal power. I was drinking that. And after I failed this drug test the only thing I started thinking to myself could that creatine somehow, you know, been where he was hiding other drugs, and I was drinking it."

The Respondent testified that he began to have dental problems in January, 2008, and he began to suspect that the white rock crystal power he had received from the woman might have contained cocaine "because my mouth fell apart on me. I failed the drug test. That is the only thing I can think maybe this is how it happened."

When the Respondent was asked if he had purchased the Creatine he had received from the woman in Washington Heights, he answered, "She didn't sell it to me at all. She was a friend of mine. Her husband got locked up at Newark airport for carrying five kilos of cocaine into the airport. We were friends. I knew her prior to me working up there. And after he got locked up, she had all her stuff at her house. She asked me if I wanted some supplements, weight gain, muscle builder creatine and I took them from her. She gave them to me." He consumed these supplements "from probably

summertime of August of 2007, I guess it is. I took the drug test in 2008, August 2007 to October, November, on and off.”

On cross-examination, the Respondent acknowledged that at his official Department interviews on June 11, 2008 and on July 24, 2008, he was asked if he knew of any reason why he had tested positive for cocaine. He never told his interviewers about the woman or the Creatine supplements he consumed or his dental problems.

### FINDINGS AND ANALYSIS

#### Specification Nos. 1 & 2

#### Random drug screening selection and hair sample collection and testing procedures

The Respondent does not challenge the manner in which he was randomly selected and ordered to report to the Medical Division to provide hair samples. The computer program utilized by the Department has been found to satisfy the requirement of randomness sufficient to justify a drug testing order.<sup>1</sup>

I credit Rahman’s testimony that the Respondent’s hair samples were properly collected, packaged, sealed and transported to Psychomedics for testing. The Respondent did not challenge the RIA test that was utilized by Psychomedics to initially analyze one of the Respondent’s two hair samples for the presence of cocaine, or the MS instrumentation that was utilized by Psychomedics to analyze both of the Respondent’s hair samples to quantify the concentration levels of cocaine and benzoylecgonine (BE), the principal cocaine metabolite that is produced in the body when cocaine is ingested and metabolized.

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<sup>1</sup> Worrel v. Brown, 177 A.D.2d 446 (1st Dept 1991), leave to appeal denied, 79 N.Y.2d 755 (1992).

Cairns, the Senior Scientific Advisor and former lab director for Psychemedics, was stipulated to be an expert in the field of testing hair for drug content based on the qualifications listed in his curriculum vitae (DX 4). Cairns explained and interpreted the data contained in the laboratory data package produced by Psychemedics which details the analytical results of the testing of the Respondent's hair samples (DX 5). Although Cairns did not personally conduct any of these tests, due process does not require that the technicians who performed these tests testify at the disciplinary hearing because testing results may be admitted and credited based on the testimony of the laboratory director where, as here, the reliability of the testing procedure used has been established, the director is familiar with all the steps taken, the director is subjected to cross-examination and no claim is raised that there was a specific defect in the testing procedures.<sup>2</sup> The Respondent did not allege any specific defect in the chain of custody or testing procedures utilized by Psychemedics.

Cairns testified that the testing data shows that after one of the Respondent's hair samples tested positive for cocaine via the scientifically recognized RIA screening method, both of the Respondent's hair samples were separately subjected to testing utilizing the scientifically recognized MS method. Cairns testified that the MS test results showed that both of the Respondent's samples tested positive for cocaine at a concentration "fifty times" above the FDA-established administrative reporting cut-off level and that such high levels reflected that during the 90 day period preceding the week that his hair sample was collected (between October 7, 2007 and January 1, 2008), the Respondent was a "chronic," meaning "pretty regular," user of cocaine. Cairns further

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<sup>2</sup> Gordon v. Brown, 84 N.Y.2d 574, 579-580 (1994).

testified that the MS analytical results showing the presence of BE in the Respondent's hair samples establish that he ingested the cocaine that was detected in his samples.

Where, as here, a recognized screening test positive result is confirmed when the same sample is subjected to MS analysis, such testing results have been found to constitute substantial scientific evidence of the presence of cocaine.<sup>3</sup> Based on all of the above, the test results obtained by Psychemedics regarding both of the Respondent's hair samples constitute substantial evidence that the Respondent possessed and ingested cocaine between October 7, 2007 and January 1, 2008.<sup>4</sup>

#### Affirmative defense of involuntary ingestion

The Respondent raised an affirmative defense of involuntary ingestion by contending that his positive test results could have been the result of unknowing ingestion of cocaine that he had been told was a dietary supplement. The Respondent asserted that "a woman in Washington Heights who I knew pretty well at the time," who was "a friend of mine" and who "works as a weightlifter or a weight trainer," gave him "weight gain supplements" which she told him were the "muscle builder Creatine." He accepted this gift and he drank the "white rock crystal powder" she gave him even though he was aware that "her husband" had recently been "locked up at Newark airport for carrying five kilos of cocaine into the airport."

I do not credit this strange story. Although the Respondent claimed that he was given supplements by "a friend of mine" who he "knew pretty well at the time," he did not refer to her by name, only as "a woman in Washington Heights." Also, the

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<sup>3</sup> McBride v. Kelly, 215 A.D.2d 161 (1st Dept 1995).

<sup>4</sup> McGovern v. Safir, 266 A.D.2d 107 (1st Dept 1999).

Respondent admitted that even though he was questioned at his official Department interviews about how his hair samples could have tested positive for cocaine, he never mentioned this woman or that he had consumed a “white rock crystal powder” that she had given him. The fact that he offered this vague, unsupported story for the first time during his testimony at this trial leads to the conclusion that this story is a recent fabrication invented in a desperate attempt to offer some kind of explanation as to how his hair samples could have tested positive for cocaine.

Based on the above, I find that the Respondent did not meet his burden of persuasion regarding his affirmative defense of involuntary ingestion.<sup>5</sup>

### Conclusion

Based on this record, the only conclusion that can be reached is that the Respondent possessed cocaine and that he knowingly ingested this cocaine.

The Respondent is found Guilty as charged of Specification Nos. 1 & 2.

### Specification No. 3

The Respondent admitted that on January 17, 2008, he wrongfully possessed an unauthorized duplicate New York City Police Department shield, #2208, without permission or authority to do so.

The Respondent, having pleaded guilty, is found Guilty as charged of Specification No. 3.

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<sup>5</sup> Green v. Sielaff, 198 A.D. 2d 113 (1st Dept 1993).

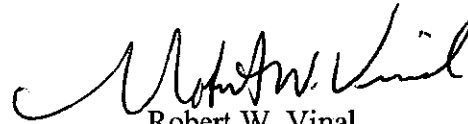
PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on April 25, 1990. Information from his personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Since the Respondent has violated the Department's rule against using illegal drugs, I am left with no alternative but to recommend that he be DISMISSED from the New York City Police Department.

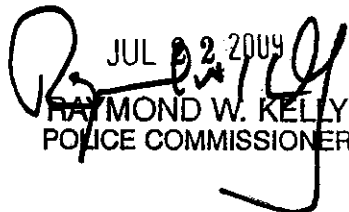
Respectfully submitted,



Robert W. Vinal

Assistant Deputy Commissioner - Trials

**APPROVED**



JUL 2 2009  
RAYMOND W. KELLY  
POLICE COMMISSIONER